



Irish Sailors and Soldiers Land Trust Act 1987

1987 CHAPTER 48

An Act to provide for the distribution of the surplus funds of the Irish Sailors and Soldiers Land Trust; and to make provision for the winding up and dissolution of the Trust. [15th May 1987]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) It shall be the duty of the Irish Sailors and Soldiers Land Trust—

- (a) to pay over in accordance with subsection (2) below any money of the Trust which it at any time considers to be in excess of its requirements for the discharge of its functions; and
- (b) when directed to do so by the Secretary of State, to wind up its affairs and to take such steps as are specified in the direction for disposing of its property and rights and discharging or transferring its liabilities.

Surplus funds,
winding up and
dissolution of
Irish Sailors and
Soldiers Land
Trust.

(2) Any money to be paid over under subsection (1)(a) above shall be divided between the United Kingdom and the Republic of Ireland in the prescribed proportions; and—

- (a) two-fifths of the United Kingdom share shall be paid to the Distributory Agency appointed under section 2 below and the remainder to the Secretary of State; and
- (b) the Republic of Ireland share shall be paid to the Government of the Republic.

(3) In subsection (2) above "the prescribed proportions" means 68 per cent. as respects the United Kingdom and 32 per cent. as respects the Republic of Ireland or such other proportions as the Secretary of State may direct; and he shall consult the Government of the Republic before giving any direction under this subsection or under subsection (1)(b) above.

(4) If after a direction has been given under subsection (1)(b) above it appears to the Secretary of State that the direction has been fully complied with he may by statutory instrument make an order dissolving the Trust.

(5) Any sums received by the Secretary of State by virtue of this section shall be paid into the Consolidated Fund of the United Kingdom and the Consolidated Fund of Northern Ireland in such proportions as he may with the consent of the Treasury determine.

The Distributory
Agency.

2.—(1) The Distributory Agency for the purposes of this Act shall be such person or persons as are for the time being appointed under this section by the Secretary of State.

(2) It shall be the duty of the Agency to administer and (so far as not required for the expenses of administration) to apply, or arrange for the application of, the money received by it under this Act for the benefit of persons resident in Northern Ireland or the Republic of Ireland who are former members of Her Majesty's armed forces, their widows or widowers or their children.

(3) The Agency shall comply with such directions relating to the discharge of its functions under this Act as may from time to time be given to it by the Secretary of State.

(4) Without prejudice to the generality of subsection (3) above, directions under that subsection may relate to the investment of money for the time being held by the Agency under this Act but the Secretary of State shall not give directions relating to that matter except with the consent of the Treasury.

(5) In subsection (2) above "children" includes step-children, adopted children and illegitimate children.

Short title,
commencement,
repeals and extent.

3.—(1) This Act may be cited as the Irish Sailors and Soldiers Land Trust Act 1987.

(2) This Act shall come into force on such day as the Secretary of State may appoint by an order made by statutory instrument.

(3) On the coming into force of an order under section 1(4) above the enactments mentioned in the Schedule to this Act shall be repealed to the extent specified in the third column of that Schedule.

(4) This Act extends to Northern Ireland.

SCHEDULE

Section 3(3)

REPEALS

Chapter	Short title	Extent of repeal
9 & 10 Geo.5 c.82.	The Irish Land (Provision for Sailors and Soldiers) Act 1919.	Section 4.
13 Geo.5 Sess.2 c.2.	The Irish Free State (Consequential Provisions) Act 1922 (Session 2).	Section 3.
13 & 14 Geo.5 c.19 (N.I.)	The Land Trust (Powers) Act (Northern Ireland) 1923.	The whole Act.
15 & 16 Geo.5 c.3 (N.I.)	The Administrative Provisions Act (Northern Ireland) 1925.	Section 2(1).
1950 c.3 (N.I.)	The Exchequer and Financial Provisions Act (Northern Ireland) 1950.	Section 34.
15 & 16 Geo.6 & 1 Eliz.2 c.58.	The Irish Sailors and Soldiers Land Trust Act 1952.	The whole Act.
1967 c.67.	The Irish Sailors and Soldiers Land Trust Act 1967.	The whole Act.